

A Law Written in Blood: *Analysis of Anti-Terrorism Act of 2020*

Vanessa G. Silla
College of Law, West Visayas State University

I Conception of the Anti-Terrorism Act of 2020

On May 23, 2017, Marawi City was attacked by armed men.¹ This resulted in armed confrontation between government forces and pro-ISIS militants. A day later, then-President Duterte put the entire region under martial law.² When the Mindanao-wide martial law was approaching its expiration date, the Congress introduced House Bill (HB) No. 6875 or the proposed Anti-Terrorism Act of 2020. On June 1, 2020, then-President Duterte wrote a letter to House Speaker Alan Peter Cayetano saying HB No. 6875 must be immediately passed "to address the urgent need to strengthen the law on anti-terrorism" and "effectively contain the menace of terrorist acts."³ This allowed the House to pass the bill on 2nd reading as well as 3rd and final reading on the same day.⁴

II Birth of the Anti-Terrorism Act of 2020

On July 3, 2020, then-President Duterte signed this controversial bill into law.⁵ The law will take effect after publication pending the issuance of implementing rules and regulations.

¹ Dr DB Subedi and Dr Balázs Áron Kovács, Setianto, N., Jami, M., & Wong, D. A. C. (2020, June 18). *The Philippines' new anti-terrorism law closes the space for peacebuilding*. Australian Institute of International Affairs. Retrieved October 27, 2022, from <https://www.internationalaffairs.org.au/australianoutlook/the-philippines-new-anti-terrorism-law-closes-the-space-for-peacebuilding/>

² Morales, Y. (n.d.). *Duterte declares martial law in Mindanao*. cnn. Retrieved October 27, 2022, from <https://www.cnnphilippines.com/news/2017/05/24/Duterte-declares-martial-law-in-Mindanao.html>

³ Staff, C. N. N. P. (n.d.). *Sotto: Anti-terrorism bill 'good as passed'*. cnn. Retrieved October 27, 2022, from <https://www.cnnphilippines.com/news/2020/6/2/Anti-terror-bill-good-as-passed-after-Duterte-certified-as-urgent.html>

⁴ P&L LawPamaos & Labao Law Firm (P&L Law) is a full-service professional legal firm. (2020, June 6). *Effect of certification by president that a proposed law is urgent; engrossed/enrolled bill " Philippine e-legal forum* Philippine e-Legal Forum. Retrieved October 27, 2022, from <https://pnl-law.com/blog/effect-of-certification-by-president-that-a-proposed-law-is-urgent-engrossed-enrolled-bill/>

⁵ Santos, E. (n.d.). *Duterte signs into law the controversial anti-terrorism Bill*. cnn. Retrieved October 27, 2022, from <https://cnnphilippines.com/news/2020/7/3/duterte-signs-anti-terrorism-law.html?via=webuproar>

III About the Anti-Terrorism Act of 2020

Republic Act No. 11479, or the Anti-Terrorism Act of 2020 (ATA), repealed the Human Security Act of 2007. The ATA aims (1) to protect life, liberty, and property from terrorism; (2) to condemn terrorism as inimical and dangerous to national security of the country and welfare of the people; and (3) to make any form of terrorism a crime against Filipino people, against humanity and against the law of Nations.

Terrorism can be committed by any person, here in the Philippines or abroad, regardless of the stage of execution if that person commits the following acts: (1) cause death or serious bodily injury to any person, or endangers a person's life⁶; (2) cause extensive damage or destruction to a government or public facility, public place, or private property⁷; (3) cause extensive interference with, damage, or destruction to critical infrastructure⁸; (4) Develops, manufactures, possesses, acquires, transports, supplies or uses weapons, explosives or of biological, nuclear, radiological, or chemical weapons⁹; (5) Release of dangerous substances, or causing fire, floods, or explosions¹⁰. The purpose of the act should be to intimidate the public, create an atmosphere or spread a message of fear, provoke or to influence by intimidation the government or any international organization, or seriously destabilize or destroy the fundamental, political, economic, or social structures of the country, or create a public emergency or undermine public safety.¹¹ ATA qualifies that advocacy, protest, dissent, stoppage of work, industrial or mass action, creative, artistic, and cultural expression, or other similar exercises of civil and political rights are acts that are not considered as terrorism.¹²

The ATA also penalizes threat to commit terrorism¹³, planning, training, preparing and facilitating the commission of terrorism¹⁴, conspiracy to commit terrorism¹⁵, proposal to commit terrorism¹⁶, inciting to commit terrorism¹⁷, recruitment to and membership in a terrorist group, and providing material support to terrorists¹⁸.

⁶ Section 4 (a) of the Anti-Terrorism Act of 2020

⁷ Section 4 (b) of the Anti-Terrorism Act of 2020

⁸ Section 4 (c) of the Anti-Terrorism Act of 2020

⁹ Section 4 (d) of the Anti-Terrorism Act of 2020

¹⁰ Section 4 (e) of the Anti-Terrorism Act of 2020

¹¹ *Id.*

¹² *Id.*

¹³ Section 5 of the Anti-Terrorism Act of 2020

¹⁴ Section 6 of the Anti-Terrorism Act of 2020

¹⁵ Section 7 of the Anti-Terrorism Act of 2020

¹⁶ Section 8 of the Anti-Terrorism Act of 2020

¹⁷ Section 9 of the Anti-Terrorism Act of 2020

¹⁸ Section 10 of the Anti-Terrorism Act of 2020

Moreover, ATA allows longer period and extended coverage of surveillance¹⁹, designation and freezing of assets of designated terrorist individual, groups of persons, organizations, or associations²⁰, restriction on the right to travel²¹, and deletion of award of damages to persons acquitted of charges of terrorism²².

Finally, the heart and soul of the Anti-Terrorism Act (ATA) is found in its Section 29, which authorizes the Anti-Terrorism Council (ATC) to order an arrest without judicial warrant, and to extend detention without judicial charge beyond the reglementary 3-day period under the Revised Penal Code (RPC). According to Senator Panfilo Lacson, the principal author of the ATA, the rationale behind this provision is that law enforcement agents need at least 14 days to develop a case and to file a strong case for violation of ATA to strengthen the case. Defense Secretary Delfin Lorenzana echoed this. He said that longer detention period is necessary so that the authorities can hold the him if he is really a terrorist. This will also disable him from committing a terror act.

IV Petition

The 37 petitions were filed by framers of the Constitution, law experts, and human rights advocates, as well as individuals who claim to have been victims of authorities' terrorist-tagging.²³

The major issues raised are as follows:

1. Is the definition of terrorism under the Anti-Terrorism Act of 2020 ambiguous?
2. Was the Anti-Terrorism Council given too much power?
3. Is the warrantless arrest and detention without charges of suspected terrorists for up to 24 days contrary to the Constitution, the Revised Penal Code, the Rules of Court, and international obligations against arbitrary detention?
4. Did the sections on surveillance violate the people's rights to due process and to privacy of communication and correspondence, rights to freedom of speech, expression, and religion, right against unreasonable searches and seizures, and the accused's right to presumption of innocence?

¹⁹ Section 16 of the Anti-Terrorism Act of 2020

²⁰ Section 25 and Section 36 of the Anti-Terrorism Act of 2020

²¹ Section 34 of the Anti-Terrorism Act of 2020

²² Section 34 of the Anti-Terrorism Act of 2020

²³ *Here are the major issues raised against the Anti-Terrorism Act*. cnn. (n.d.). Retrieved November 17, 2022, from <https://www.cnnphilippines.com/news/2021/1/30/Anti-Terrorism-Act-oral-arguments-Supreme-Court.html>

V Decision of the Supreme Court

In December 2021, the Philippine Supreme Court has mostly upheld the heavily contested anti-terror law, including the 24-day detention power.²⁴ In justifying its ruling, the Supreme Court accepted the interpretation of the Solicitor General. The Solicitor General in his comment stated that Section 29 does not authorize the ATC to order the arrest of any person. The Solicitor General interpreted Section 29 as referring to warrantless arrests under Rule 113 of the Rules of Court. Simply put, Section 29 is just a reiteration of Rule 113. The Supreme Court declared only two parts unconstitutional, part of the so-called killer caveat under Section 4(e) and the second mode of designation under Section 25.²⁵ Section 4 (e) deals with excluding mass actions and similar exercise of civil and political rights from the definition of terrorism while Section 25 is about requests by foreign agencies or bodies to designate persons as terrorists and terrorist organizations.²⁶

The Supreme Court voted 12-3 to declare unconstitutional the qualifier portion of Section 4 that states “which are not intended to cause death or serious physical harm to a person, to endanger a person's life, or to create a serious risk to public safety”.²⁷ This qualifier to the proviso in Section 4 “is declared as unconstitutional for being overbroad and violative of freedom of expression”.²⁸

By a vote of 9-6, a portion of Section 25, paragraph 2 was also declared unconstitutional. This provision allows “request for designations by other jurisdictions or supranational jurisdictions may be adopted by the ATC (Anti-Terrorism Council) after determination that the proposed designee meets the criteria for designation of UNSCR No. 1373”.²⁹

On April 26, 2022, the high tribunal denied “with finality” the appeals to reverse its decision on petitions challenging the anti-terror law because of “lack of substantial issues and arguments raised by the petitioners”.³⁰

²⁴Buan, L., author. *Supreme Court upholds most of anti-terror law, including 24-Day detention* RAPPLER. Retrieved October 27, 2022, from <https://www.rappler.com/nation/supreme-court-upholds-parts-anti-terrorism-law/>

²⁵ *Id.*

²⁶SC denies with finality all challenges vs. Anti-Terrorism Act. (n.d.). Retrieved October 27, 2022, from <https://www.pna.gov.ph/articles/1172952>

²⁷ *Id.*

²⁸ *Id.*

²⁹ *Id.*

³⁰ *SC decision on Anti-Terrorism Act 'Triumph' for ph: Palace.* (n.d.). Retrieved November 17, 2022, from <https://www.pna.gov.ph/articles/1172983>

V After Effects

On March 2, 2022, 26 groups filed a joint motion for reconsideration. The petitioners cited the recent killing of Lumad school volunteer teacher Chad Booc and four others in New Bataan, Davao de Oro. Booc has long been subjected to red-tagging by government officials before his death. Also, the motion noted that red-tagging has in many instances preceded the extrajudicial killings of activists and human rights defenders, with Booc, also a petitioner against ATA, being one of the victims paraded as ‘terrorists’ by the military.³¹

On June 25, 2022, ATC Resolution No. 31 designated Luis Jalandoni as a terrorist, along with 10 other persons with alleged links with the Communist Party of the Philippines - New Peoples’ Army (CPP-NPA), Abu Sayyaf Group (ASG), and Daulah Islamiyah (DI). ATC Resolution No. 31 was signed on May 25, 2022.³²

On June 22, 2022, Outgoing National Security Adviser Hermogenes Esperon Jr. managed to get the National Telecommunications Commission (NTC) to block access to 28 websites.³³ This was made possible despite not citing evidence. In particular, his letter of request to the NTC failed to cite even the specific articles of the ATA that he claims these websites violated. A month later, opposition party-lists filed a bill to repeal the Anti-Terrorism Act. In filing the bill, Rep. Raoul Manuel (Kabataan party-list), Rep. France Castro (ACT Teachers party-list) and Rep. Arlene Brosas (Gabriela Women’s Party) said “it is high time for Congress to do its part to ensure that this bill will not have the capability to harm any other person in the country.”³⁴ However, this ship may not likely sail considering that the House of Representatives has historically been dominated by members aligned with or supportive of the sitting president.

³¹ Yahoo! (n.d.). *Supreme Court urged to reconsider 'deadly' anti-terror law*. Yahoo! News. Retrieved November 17, 2022, from

<https://ph.news.yahoo.com/supreme-court-urged-to-reconsider-deadly-anti-terror-law-072008674.html>

³² Yahoo! (n.d.). *11 individuals tagged as terrorists by anti-terror council*. Yahoo! News. Retrieved November 17, 2022, from <https://ph.news.yahoo.com/anti-terror-council-tags-11-individuals-as-terrorists-074518020.html>

³³ Buan, L., author (2022, June 23). *Esperon uses anti-terror law to block websites including news site*. RAPPLER. Retrieved November 17, 2022, from https://www.rappler.com/nation/esperon-uses-anti-terror-law-block-access-progressive-websites-including-news-organization/?cx_testId=2&cx_testVariant=cx_1&cx_artPos=1&cx_experienceId=EX4CPN0G1RJL#cxrecs_s

³⁴ Person. (2022, July 3). *Citing potential abuse, makabayan party-lists seek repeal of Anti-Terrorism Act*. Philstar.com. Retrieved November 17, 2022, from <https://www.philstar.com/headlines/2022/07/03/2192766/citing-potential-abuse-makabayan-party-lists-seek-repeal-anti-terrorism-act>

VI Conclusion

Taking politically motivated arrests and countless cases of human rights violation into consideration, Anti-Terrorism Act may more likely produce more harm than good. Hence, let the eye of vigilance never be closed. ■

Bibliography

Buan, L., author (2021, December 9). *Supreme Court upholds most of anti-terror law, including 24-Day detention*. RAPPLER. Retrieved October 27, 2022, from <https://www.rappler.com/nation/supreme-court-upholds-parts-anti-terrorism-law/>

Carpio, A. T. (2022, October 16). *[analysis] who won in the anti-terrorism act case?* RAPPLER. Retrieved November 17, 2022, from <https://www.rappler.com/voices/thought-leaders/who-won-in-the-anti-terrorism-act-case/>

Code-Ngo. (2021, September 15). *What are the salient features of the anti-terror act of 2020 (RA 11479)? - code-NGO*. CODE. Retrieved October 27, 2022, from <https://code-ngo.org/what-are-the-salient-features-of-the-anti-terror-act-of-2020-ra-11479/>

Dr DB Subedi and Dr Balázs Áron Kovács, Setianto, N., Jami, M., & Wong, D. A. C. (2020, June 18). *The Philippines' new anti-terrorism law closes the space for peacebuilding*. Australian Institute of International Affairs. Retrieved October 27, 2022, from <https://www.internationalaffairs.org.au/australianoutlook/the-philippines-new-anti-terrorism-law-closes-the-space-for-peacebuilding/>

Here are the major issues raised against the Anti-Terrorism Act. cnn. (n.d.). Retrieved November 17, 2022, from <https://www.cnnphilippines.com/news/2021/1/30/Anti-Terrorism-Act-oral-arguments-Supreme-Court.html>

Marawi Crisis. UNHCR Philippines. (n.d.). Retrieved October 27, 2022, from <https://www.unhcr.org/ph/marawi-crisis>

Morales, Y. (n.d.). *Duterte declares martial law in Mindanao*. cnn. Retrieved October 27, 2022, from <https://www.cnnphilippines.com/news/2017/05/24/Duterte-declares-martial-law-in-Mindanao.html>

Person. (2022, July 3). *Citing potential abuse, makabayan party-lists seek repeal of Anti-Terrorism Act*. Philstar.com. Retrieved November 17, 2022, from <https://www.philstar.com/headlines/2022/07/03/2192766/citing-potential-abuse-makabayan-party-lists-seek-repeal-anti-terrorism-act>

P&L LawPamaos & Labao Law Firm (P&L Law) is a full-service professional legal firm. (2020, June 6). *Effect of certification by president that a proposed law is urgent; engrossed/enrolled bill " Philippine e-legal forum*. Philippine e-Legal Forum. Retrieved October 27, 2022, from <https://pnl-law.com/blog/effect-of-certification-by-president-that-a-proposed-law-is-urgent-engrossed-enrolled-bill/>

P&L LawPamaos & Labao Law Firm (P&L Law) is a full-service professional legal firm. (2020, June 6). *Effect of certification by president that a proposed law is urgent; engrossed/enrolled bill " Philippine e-legal forum*. Philippine e-Legal Forum. Retrieved October 27, 2022, from <https://pnl-law.com/blog/effect-of-certification-by-president-that-a-proposed-law-is-urgent-engrossed-enrolled-bill/>

Republic Act no. 11479. (n.d.). Retrieved October 27, 2022, from https://lawphil.net/statutes/repacts/ra2020/ra_11479_2020.html

Philippine National Agency (n.d.). *SC denies with finality all challenges vs. Anti-Terrorism Act*. Retrieved October 27, 2022, from <https://www.pna.gov.ph/articles/1172952>

Staff, C. N. N. P. (n.d.). *Sotto: Anti-terrorism bill 'good as passed'*. cnn. Retrieved October 27, 2022, from <https://www.cnnphilippines.com/news/2020/6/2/Anti-terror-bill-good-as-passed-after-Duterte-certified-as-urgent.html>

Tomacruz, S., author Sofia Tomacruz *Duterte certifies as urgent anti-terrorism bill feared to clamp down on basic rights*. RAPPLER. Retrieved October 27, 2022, from <https://www.rappler.com/nation/262565-duterte-certifies-urgent-tougher-anti-terrorism-bill/>

Yahoo! (n.d.). *11 individuals tagged as terrorists by anti-terror council*. Yahoo! News. Retrieved November 17, 2022, from <https://ph.news.yahoo.com/anti-terror-council-tags-11-individuals-as-terrorists-074518020.html>

Yahoo! (n.d.). *Supreme Court urged to reconsider 'deadly' anti-terror law*. Yahoo! News. Retrieved November 17, 2022, from <https://ph.news.yahoo.com/supreme-court-urged-to-reconsider-deadly-anti-terror-law-072008674.html>